

25NNCV02052 25NNCV02052

County: los-angeles

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Case Number: 25NNCV02052 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: September 11, 2026

Case No: 25NNCV02052 Trial Date: June 28, 2027

Case Name: Chase v. Mohammad, et al.

MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

[CCP § 428]

Moving Party: Defendant, United Independent Taxi Cooperative, Inc.

Responding Party: Plaintiff, Tom Chase

RELIEF REQUESTED:

Leave for defendant United Independent Taxi Cooperative, Inc. to file a cross-complaint.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle

2) General Negligence

JUDICIAL NOTICE:

The Court may take judicial notice of “[t]he decisional, constitutional, and statutory law of any state of the United States and the resolutions and private acts of the Congress of the United States and of the Legislature of this state.” (Evidence Code, § 452, subd. (a).)

Pursuant to Plaintiff’s request, the Court takes judicial notice of California Code of Civil Procedure section 335.1.

SUMMARY OF FACTS:

This is a motor vehicle personal injury action. The Complaint alleges that on June 18, 2023, Tom Chase (“Plaintiff”) was a passenger in a vehicle driving westbound on Ventura Boulevard in Studio City, CA 91604, when Daud Mohammad (“Mohammad”) who was travelling a high rate of speed, collided with Plaintiff. Plaintiff alleges that he has sustained bodily injuries as a result of the collision.

ANALYSIS:

Under CCP section 428.50, subdivision (a), a party is entitled to “file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.” Furthermore, “[a]ny other cross-complaint may be filed at any time before the court has set a date for trial.” (CCP, § 428.50, subd. (b).) If a cross-complaint is not filed within these guidelines, it may only be filed with leave of the court, who may grant it “in the interest of justice at any time during the course of the action.” (CCP, § 428.50, subd. (c).)¿

A cross-complaint is compulsory when a related cause of action existed at the time of serving the defendant’s answer to the complaint.¿ (CCP § 426.30, subd. (a); see also Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.)¿ A “[r]elated cause of action” means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.”¿ (CCP, § 426.10, subd. (c).)¿ Leave must be granted to file a compulsory cross-complaint when the defendant is acting in good faith.¿(CCP, § 426.50.)¿¿¿

Defendant United Independent Taxi Cooperative, Inc. (“United”) seeks leave to file a cross-complaint against proposed cross-defendant Marlena Mont (“Mont”) for equitable indemnity, contribution, and declaratory relief. The proposed cross-complaint arises from the same June 18, 2023 collision that is the subject of Plaintiff’s Complaint. (Aleagha Decl., ¶ 7, Ex. A.) Plaintiff was a passenger in the vehicle operated by Mont when it collided with the vehicle operated by Mohammad. (Aleagha Decl., ¶ 5.) United was only recently brought into this action and did not appear until March 23, 2026. (Aleagha Decl., ¶ 4.) United asserts that “[t]hrough the course of investigation and discovery in this action, including review of dashcam footage from the vehicle operated by Defendant Daud Mohammad, video footage obtained by subpoena depicting the Los Angeles Police Department’s interaction with the parties following the incident, and the deposition testimony of Plaintiff, evidence has been developed indicating that the collision was caused, in whole or in part, by the negligent operation of the vehicle by Marlena Mont, including an unsafe turn and/or lane change across lanes of traffic, a failure to yield, and driving against the flow of traffic.” (Aleagha Decl., ¶ 6.)

Thus, the causes of action asserted in the proposed cross-complaint arise out of the same occurrences set forth in the Complaint. Moreover, there is no indication that United unreasonably delayed in seeking to file a cross-complaint. United filed the instant motion three months after appearing in this action.

In the opposition, Plaintiff argues that the cross-complaint is barred by the statute of limitations. The deadline for presenting a claim for personal injury is two years. (CCP, § 335.1.) The collision at issue occurred on June 18, 2023. (Opp., p. 3:12.) However, “a tort defendant’s equitable indemnity action is separate and distinct from the plaintiff’s tort action. The indemnity action, unlike the plaintiff’s claim, does not accrue for statute of limitations purposes when the original accident occurs, but instead accrues at the time the tort defendant pays a judgment or settlement as to which he is entitled to indemnity. ” (Valley

Circle Estates v. VTN Consolidated, Inc. (1983) 33 Cal. 3d 604, 611, quoting People ex rel. Department of Transportation v. Superior Court (1980) 26 Cal.3d 744, 748.) Thus, the tort defendant's statute of limitations does not begin to run "until payment of an underlying claim, payment of a judgement thereon, or payment of a settlement." (Postley v. Harvey (1984) 153 Cal.App.3d 280, 285.)

Here, the underlying action is still being litigated. Accordingly, United's cross-complaint for indemnity and contribution is timely.

Plaintiff also argues that granting leave to file the cross-complaint would prejudice Plaintiff and that Defendants have not demonstrated a good faith justification for waiting three years after this action was initiated to seek leave to file the cross-complaint. (Opp., pp. 5:25-10:4.) These arguments are unavailing. Trial in this action is not currently set until June 28, 2027, leaving substantial time for the parties to litigate the cross-complaint without disrupting the trial date. Moreover, United did not appear in this action until March 23, 2026. United filed this motion approximately three months after appearing in the action, which is not an unreasonable amount of time to seek leave to file a cross-complaint.

The motion is GRANTED.

RULING:

Defendant United Independent Taxi Cooperative, Inc.'s Motion for Leave to File a Cross-Complaint is GRANTED.

The cross-complaint is to be filed within 5 days of this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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